ABSTRACT RESEARCH GROUP, LLC.
TITLE SEARCH REQUEST

MAIN OFFICE / VA RECORDINGS
19309 WINMEADE DR. #229
LANSDOWNE, VA 20176

orders@abstractresearch.com
Phone 703-430-3695
Fax 703-430-3696

Order #: **206829** *Search Ordered:* **4/8/2026** *Search Due:* **4/10/2026**

PRODUCT: **40 YEAR / DEVELOPER SEARCH; HUD $55,962.00*****

COUNTY: **DICKENSON COUNTY**

NAME: **Cynthia Kiser-Hylton**

ADDRESS: **3155 THE LAKE ROAD CLINTWOOD, VA 24228**

3/30/2026

ALL SEARCHES ARE DUE BACK TO OUR OFFICE IN 36 HOURS. FULL SEARCHES ARE DUE IN 4 BUSINESS DAYS. IF YOU CANNOT MEET THIS DEADLINE, PLEASE ADVISE IMMEDIATELY UPON RECEIPT OF ORDER. PLEASE PROVIDE ORDER CONFIRMATION ETA.

PLEASE LIST ALL JUDGMENTS ON COVERSHEET. ALSO MAKE SURE JUDGMENT FILE NUMBERS AND RECORDING DATES ARE CLEARLY LISTED ON THE COPY.

*****ONLY A CURRENT OWNER SEARCH IS REQUIRED IF YOU ENCOUNTER A BUILDER, DEVELOPER, OR GOVERNMENT ENTITY. (THIS DOES NOT APPLY TO FULL SEARCHES. PLEASE SEE FULL SEARCH REQUIREMENTS ON NEXT PAGE)***

Please return searches to searches@abstractresearch.com
On every search/abstract, we need the following:

1. FULL Copies of the following:

a. All Deeds of conveyance including legal description.
b. All Open Mortgages/Deed of Trusts
c. All Assignments/Modifications, if any.
d. All Open Judgments/Liens/UCC's

2. All current tax information that attaches to the property with parcel number (tax id, folio #, etc.). Also, please make sure to include the tax bill or screen print out.

3. Effective date

4. Abstractor runsheets

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******FULL SEARCH REQUIREMENTS (60 YEARS UNLESS OTHERWISE NOTED):***

PLEASE PROVIDE PLAT

PLEASE PROVIDE COPIES OF ALL DEEDS. (IF YOU REACH A DEVELOPER, PLEASE PROVIDE DEED COPY(OR COPIES) FROM WHICH THE PLAT IS DERIVED.

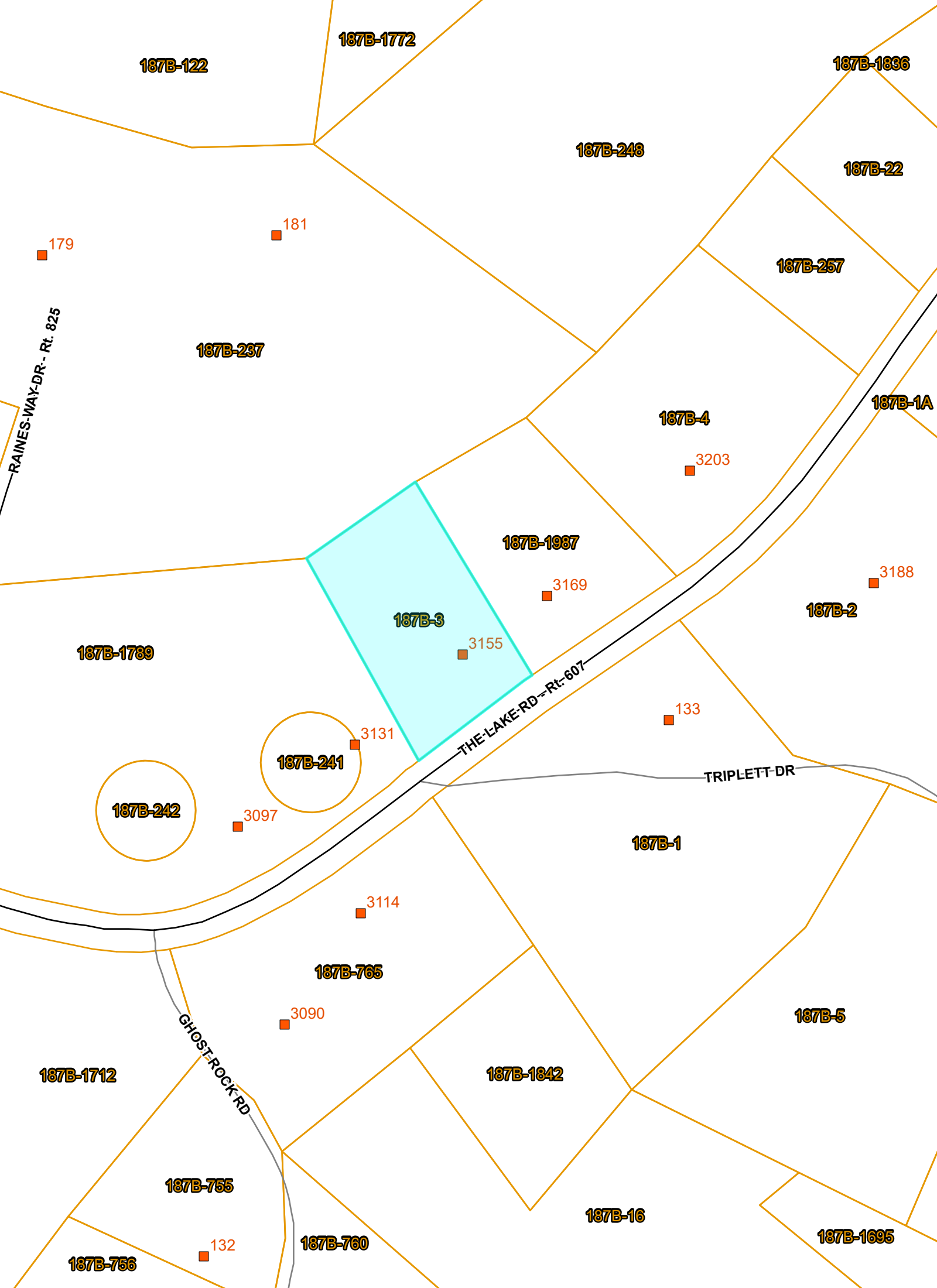
PLEASE LIST ALL EASEMENTS RESTRICTIONS. (COPIES NOT REQUIRED)

If HOA is found, we need a copy of the Declaration of HOA – Pertinent pages of this document are acceptable (1st page, Table of Contents, subordination info and recording page)

****** VESTING DEED / TARGET MORTGAGE SEARCH***

1. PLEASE PROVIDE A COPY OF THE VESTING DEED.

2. PLEASE PROVIDE A COPY OF THE TARGET MORTGAGE. (INCLUDE ALL ASSIGNMENTS, AGREEMENTS, ETC)


187B-122
187B-1772
187B-1836
187B-248
187B-22
181
179
187B-257
RAINES WAY DR - Rt. 825
187B-237
187B-1A
187B-4
3203
187B-1987
3188
3169
187B-2
187B-3
3155
187B-1789
THE LAKE RD - Rt. 607
133
3131
187B-241
TRIPLETT DR
187B-242
3097
187B-1
3114
187B-765
3090
187B-5
GHOST ROCK RD
187B-1712
187B-1842
187B-755
187B-16
187B-1695
132
187B-760
187B-756

Property Identification Card

◉ **Current** ○ **Re-Assessed**

Previous

Property Address
3155 THE LAKE RD

Owner Name/Address
KISER CYNTHIA LEE ANN
3155 THE LAKE RD
CLINTWOOD VA 24228

Map ID: 00000000010080
Acct No: 10554-1
Legal Description: BARTLEY BRANCH .25AC (13500 SQ FT)
187B-3
Plat Book/Page: 438 / 734
Deed Book/Page: 552 / 114
Instrument: BS 2017 1700013 46

Occupancy: DWELLING
Dwelling Type: CONV
Use/Class: SINGLE/FAM RES SUBURB **Acreage:** 0.250
Year Assessed: 2024 **Year Built:** 1947 **Land Use:**
Zoning: **Year Remodeled:** 1994 **Total Mineral:** $0
District: 05 WILLIS **Year Effective:** 1945 **Total Land:** $5,000
MH/Type: **On Site Date:** 05/29/2023 **Total Improvements:** $30,600
Condition: FAIR **Review Date:** **Total Value:** $35,600

```
|---------------- Improvement Description ------------------|
      Exterior              Interior                Site
 CONST-WOOD FRAME     NO. ROOMS - 5       STREET-PAVED                    +---11----+---11----+---9----+
 EXT*1-VINYL          NO. BEDROOMS - 2    UTILTY-PUB WATER                :         :POR      :        :
 FOUND-CINDER BLOCK   NO. BATHS - 1       UTILTY-SEPTIC SYS               7         7         7        :
 ROOF_-COMP SHINGLE   FLOOR-CARPET                                        :         :         :        :
 ROOF_-METAL          FLOOR-TILE                                        +2+         +---11----+        :
                      INTER-PANEL                                       :                     :        :
                      INTER-SHEET ROCK                                  8                     :        :
                                                                        :                     :        :
|-------------------- Dwelling Valuation --------------------|         :                     :        :
    Item                  Size           Rate         Value  +---12-----+                     :       31:
 DWELLING                  845          56.27         47548 :DWL                             :        :
 BATH FULL                   1        3528.00          3528 :                              24        :
 A/C CENTRL                845           2.20          1859 :                              :        :
 PUBLIC WAT                  1        3675.00          3675 16                             :        :
 SEPTIC                    200        5880.00          5880 :                              :        :
 HEAT CENTR                845           2.57          2171 :                              :        :
 PORCH OPEN                140          26.46          3704 :                              :        :
 PORCH OPEN                 77          26.46          2037 :                              :WDK     :
 WOOD DECK                 279          22.05          6151 +----14------+-------20--------+2+---9----+
   Grade Factor     ( D   )                            .85             :              POR :
 Replacement Cost New                                65110             7                  7
   Phys Depr. %     (.530 )  1945  - FAIR            34508             +-------20--------+
 Total Bldg. Value                                   30600 Sec    Type    Str        Description  Area
                                                           DWL DWELLING   1.00 E12N8E2N7E11S7E11   845
|---------------------- Land Valuation ----------------------|                   S24W2W20W14N16
 M Cls    Desc    G   Size   Dpth     Rate     FV/Pct  Value  POR PORCH OPEN 1.00 S7W20N7E20          140
 A 100 HOME SITE  O      .25         20000.00            5000  POR PORCH OPEN 1.00 E11S7W11N7           77
 Total Land Value       .250                             5000  WDK WOOD DECK  1.00 E9N31W9S7S24        279
                                                                Total Square Feet                      1341
|------------------------ Comments -------------------------|-----------------------------------------
 187B (A) 3                                                              Cur. Value   Prev. Value  %Inc.
 IN DB 384 PG 352 STEVEN R & LETHIA PHIPPS CONVEYED             Land            5000         5000
 UNTO LETHIA PHIPPS 13500 SQ FT O BARTLY BRANCH.                Improvements   30600        20800
 THE CONSIDERATION FOR THIS TRANSFER WAS $0.00.                 Total          35600        25800
 THIS TRANSFER TOOK PLACE ON 03/13/03.                          Average Price Per Acre      20000
 TRANSFERED FROM LETHIA LOUISE SLUSS POWERS (FKA-               Sale Date/Amount  12/01/2017        35000
 LETHIA PHIPPS) & VERNON RANDALL POWERS TO LETHIA
 LOUIES SLUSS & VERNON RANDALL POWERS IN DB 438 PG
 734 ON 06/11/07. THE CONSIDERATION WAS $0.00-DEED
 OF GIFT. THERE WAS THREE CARDS INVOLVED IN THIS
 TRANSFER CARDS #10080, #10081 & #10082.
 2018 REAS-RENTAL.
 TRANSFERRED FROM VERNON RANDALL POWERS, AND LETHIA
 LOUISE SLUSS POWERS TO CYNTHIA LEE ANN KISER IN
 DB 552 PG 114 ON 12/01/17. THE CONSIDERATION WAS
 $35,000.-DBS.
|-----------------------------------------------------------|
 Total Property Value                                35600
```

Dickenson County, Virginia

Angela Rakes - Treasurer

Ticket Detail

REAL ESTATE - 2025

Department:	RE2025	**Ticket No:**	83350001
Frequency:	1	**Supplement No:**	0
Name:	KISER CYNTHIA LEE ANN	**Account No:**	10554
Name 2:		**Map ID:**	00000000010080
Address:	3155 THE LAKE RD CLINTWOOD VA 24228		
Description:	BARTLEY BRANCH .25AC (13500 SQ FT) 187B-3		
District:	05		
Bill Date:	05/09/2025	**Due Date:**	06/30/2025

Land Value:	$5,000	**Improvement Value:**	$30,600

Original Bill:	$92.56
Acres:	0.25
Last Payment:	06/28/2025
Payments:	$92.56-
Penalty Paid:	$0.00
Interest Paid:	$0.00
Amount Owed:	$0.00
Total Owed:	$0.00
Penalty:	$0.00
Interest:	$0.00

Note: If payment was received within the past 10 business days, then any returned items may not be posted at this time.

Show 10 entries

Date	Type	Transaction No.	Amount	Balance
05/09/2025	Charge	0	$ 92.56	$ 92.56
06/17/2025	Payment	73673	$ -92.56	$ 0.00

First Previous 1 Next Last

New Search Previous

Dickenson County, Virginia

Angela Rakes - Treasurer

Ticket Detail

REAL ESTATE - 2025

Department:	RE2025	**Ticket No:**	83350002
Frequency:	2	**Supplement No:**	0
Name:	KISER CYNTHIA LEE ANN	**Account No:**	10554
Name 2:		**Map ID:**	00000000010080
Address:	3155 THE LAKE RD CLINTWOOD VA 24228		
Description:	BARTLEY BRANCH .25AC (13500 SQ FT) 187B-3		
District:	05		
Bill Date:	05/09/2025	**Due Date:**	12/05/2025

Land Value:	$5,000	**Improvement Value:**	$30,600

Original Bill:	$92.56
Acres:	0.25
Last Payment:	01/14/2026
Payments:	$92.56-
Penalty Paid:	$0.00
Interest Paid:	$0.00
Amount Owed:	$0.00
Total Owed:	$0.00
Penalty:	$0.00
Interest:	$0.00

Note: If payment was received within the past 10 business days, then any returned items may not be posted at this time.

Show 10 entries

Date	Type	Transaction No.	Amount	Balance
05/09/2025	Charge	0	$ 92.56	$ 92.56
12/05/2025	Payment	98379	$ -92.56	$ 0.00

First Previous 1 Next Last

New Search Previous

This Instrument Prepared by:
Freddie E. Mullins, P. C.
Attorney at Law
P. O. Box 951
Clintwood, Virginia 24228
Tax ID# 10080
Assessed Value: $27,100.00

This Deed, made and entered into on this the 1st day of December, 2017, by and between, **VERNON RANDALL POWERS and LETHIA LOUISE SLUSS POWERS**, husband and wife, **GRANTORS**, and **CYNTHIA LEE ANN KISER**, (separated), **GRANTEE**, whose address is P.O. Box 1872, Clintwood, VA 24228.

WITNESSETH:

That for and in consideration of the sum of **THIRTY FIVE THOUSAND ($35,000.00) DOLLARS**, cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the Grantors, Vernon Randall Powers and Lethia Louise Sluss Powers, does hereby grant, bargain, sell and convey unto the Grantee, Cynthia Lee Ann Kiser, with General Warranty and English Covenants of Title, the following tract of land:

> All that certain tract or parcel of land, with the improvements thereon and all rights, privileges and appurtenances thereunto belonging situate, lying and being on Bartley Branch in Dickenson County, Virginia, and being more particularly bounded and described as follows:
>
> **BEGINNING** at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is a part; thence N 55 45 E 130 feet to the **BEGINNING**, containing about 13500 square feet, more or less, and being the same property labeled as TRACT NO. 1 conveyed unto Lethia Louise Sluss Powers and Vernon Randall Powers by Deed dated May 31, 2007, and of record in Deed Book 438, page 734, in the Circuit Court Clerk's Office for Dickenson County, Virginia.

There is also conveyed by this instrument all buildings, improvements, fixtures and appliances now or hereafter attached to or used in connection with the property herein attached. There is also granted to the Grantee the use of any and all easements, right of ways, roadways, water rights, pipeline rights, sewer systems including any field lines attached thereto, in existence and which lawfully may be used by Grantor, whether by express grant, prescriptive use or otherwise, and which are appurtenant to and part of the use and enjoyment of this particular tract of land.

This conveyance is made subject to any out-conveyances, easements, restrictions, and reservations contained in duly recorded deeds, plats and other instruments constituting constructive notice in the chain of title, which have not expired by a time limitation contained therein or have otherwise become ineffective, and to matters visible upon inspection or physical examination of the property.

WITNESS the following signature(s) and seal(s):

Vernon Randall Powers (SEAL)
VERNON RANDALL POWERS

Lethia Louise Sluss Powers (SEAL)
LETHIA LOUISE SLUSS POWERS

STATE OF VIRGINIA,
COUNTY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 1st day of December, 2017, by Vernon Randall Powers and Lethia Louise Sluss Powers.

Notary Commission Expires: 08/31/21.
Notary Registration Number: 7303457.

DEIDRA LEANN GARRETT NOTARY PUBLIC REG. #7303457 MY COMMISSION EXPIRES 08/31/21 COMMONWEALTH OF VIRGINIA

NOTARY PUBLIC

INSTRUMENT 170001346
RECORDED IN THE CLERK'S OFFICE OF
DICKENSON CIRCUIT COURT ON
December 1, 2017 AT 09:20 AM
$35.00 GRANTOR TAX WAS PAID AS
REQUIRED BY SEC 58.1-802 OF THE VA. CODE
STATE: $17.50 LOCAL: $17.50
RICHARD W. EDWARDS , CLERK
RECORDED BY: CPF

Inst# 070001082

This Instrument Prepared by:
Buddy H. Wallen, P. C.
Attorney at Law
P. O. Box 705
Clintwood, Virginia 24228
(276) 926-4678
(No Title Search Was Conducted)

TAX IDENTIFICATION NO. 10080, 10081 and 10082

THIS DEED OF GIFT, made and entered into on this the 31st day of May, 2007, by and between LETHIA LOUISE SLUSS POWERS (formerly known as LETHA PHIPPS) and VERNON RANDALL POWERS, husband and wife, parties of the first part, and LETHIA LOUISE SLUSS POWERS and VERNON RANDALL POWERS, husband and wife, as tenants by the entireties, with rights of survivorship as at common law, parties of the second part, whose address is 3155 The Lake Road, Clintwood, Virginia 24228.

WITNESSETH:

That for love and affection, the parties of the first part do hereby grant, give and convey unto Lethia Louise Sluss Powers and Vernon Randall Powers, as tenants by the entireties, with rights of survivorship as at common law, with General Warranty and English Covenants of Title, all those certain tracts or parcels of land, with all the appurtenances thereto belonging, situate, lying and being on Bartley Branch in Dickenson County, Virginia, and being more particularly bounded and described as follows:

> **TRACT NO. 1:** BEGINNING at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is a part; thence N 55 45 E 130 feet to the BEGINNING,

containing about 13500 square feet, more or less, and being the same land conveyed to Letha Phipps (being the same person as Lethia Louise Sluss Powers) by Lethia Phipps and Steven R. Phipps by deed dated March 5, 2003, of record in Deed Book 384, page 352, Deed Instrument No. 030000427, of the Clerk's Office of the Circuit Court of Dickenson County, Virginia. (Tax ID No. 10080)

TRACT NO. 2: BEGINNING at a stake in the edge of State Route No. 607 and in a corner of the Wendell Stanley lot; thence N 51 45 W. 160 feet to a stake in the line of the Clyde Mullins land; thence northeast with the Clyde Mullins line 83 feet to a stake in the line of Clyde Mullins and lot No. 21 now owned by the parties of the first part, and which is now being sold to the parties of the second part; thence N 44 00 W. 46 feet to a stake in the line between Mullins and Phipps (the land being hereby sold); thence N 45 00 E 42 feet to a stake in the Clyde Mullins and lot heretofore sold to Gay Hopson; thence S. 50 00 E. 220 feet to a stake in the edge of the highway; thence with the right of way of Route No. 607, 125 feet to the BEGINNING, containing about 1/2 acre, more or less. (Tax ID No. 10082)

TRACT NO. 3: BEGINNING at a stake and a corner to Guy Sluss Lot in the State Highway #607 and with the said Highway 50 feet to corner to Kermit and Roxie Mullins, thence 200 feet and with line of said lot to the line of (formerly owned by Clyde Mullins) and with his line 50 feet to the corner of the said Guy Sluss lot; thence 200 feet to the BEGINNING, containing 10,000 square feet. (Tax ID No. 10081)

Tracts No. 2 and 3 being the same land conveyed to Lethia Louise Sluss Powers by Margie Ellen Sluss by deed dated August 27, 2004, of record in Deed Book 423, page 719, Deed Instrument No. 060000466, of the aforesaid Clerk's Office.

There is excepted from this conveyance such exceptions and reservations as have been heretofore made by prior deeds of record.

This conveyance is exempt from recordation tax as set forth in Section 58.1-810 of the Code of Virginia, as amended.

WITNESS the following signatures and seals:

Lethia L. Powers (SEAL)
LETHIA LOUISE SLUSS POWERS

Vernon Randall Powers (SEAL)
VERNON RANDALL POWERS

STATE OF VIRGINIA,

COUNTY OF DICKENSON, To-wit:

The foregoing deed of gift was acknowledged before me this 11TH day of June, 2007, by Lethia Louise Sluss Powers.

My commission expires August 31, 2007

Susan Mullins
NOTARY PUBLIC

INSTRUMENT #070000
RECORDED IN THE CLERK'S OFFICE OF
DICKENSON CO. ON
JUNE 11, 2007 AT 11:49AM
JOE TATE, CLERK
RECORDED BY: JBM

STATE OF VIRGINIA,

COUNTY OF DICKENSON, To-wit:

The foregoing deed of gift was acknowledged before me this 11TH day of June, 2007, by Vernon Randall Powers.

My commission expires August 31, 2007

Susan Mullins
NOTARY PUBLIC

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE CIRCUIT COURT OF DICKENSON COUNTY, 6/11, 2007. This deed was this day presented in said office, and upon the certificate of acknowledgment thereto annexed, admitted to record at 11:49 o'clock AM, after payment of $ Ø tax imposed by Sec. 58.1-802.

TESTE: JOE TATE, CLERK

Original returned this date to: Lethia Powers

BY: Jennie Mullins D. CLERK

INSTRUMENT NO. 030000427
Recorded in the Clerk's Office
of Dickenson County

This Instrument Prepared by:
Buddy H. Wallen, P. C.
Attorney at Law
P. O. Box 705
Clintwood, Virginia 24228
(No Title Search Was Conducted)

Tax Identification No. 10080 .

THIS DEED, made and entered into on this the 5th day of March, 2003, by and between LETHIA PHIPPS and STEVEN R. PHIPPS, parties of the first part, and LETHA PHIPPS, party of the second part, whose address is Rt. 3 Box 301, Clintwood, Virginia 24228.

WITNESSETH:

Pursuant to the terms of a Separation and Property Settlement Agreement dated February 20, 2003, and in order to effectuate the terms of that agreement, the parties of the first part do hereby grant and convey unto Lethia Phipps, with General Warranty and English Covenants of Title, all that certain tract or parcel of land, with all the appurtenances thereto belonging, situate, lying and being on Bartley Branch, in Dickenson County, Virginia, and being more particularly bounded and described as follows:

> BEGINNING at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is part; thence N 55 45 E 130 feet to the BEGINNING, containing about 13500 square feet, more or less, and being the same property conveyed to Lethia Phipps and Steven R. Phipps, by deed dated March 23, 1993, of record in Deed Book 290, page 675, in the Circuit Court Clerk's Office of Dickenson County, Virginia.

There is excepted from this conveyance such exceptions and reservations as have been heretofore made by prior deeds of record

WITNESS the following signatures and seals:

Lethia Phipps (SEAL)
LETHIA PHIPPS

Steven R. Phipps (SEAL)
STEVEN R. PHIPPS

STATE OF VIRGINIA,

COUNTY/CITY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 12th day of March, 2003, by LETHIA PHIPPS.

My commission expires June 30, 2005.

Mitzi Sykes
NOTARY PUBLIC

STATE OF VIRGINIA,

COUNTY/CITY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 12th day of March, 2003, by STEVEN R. PHIPPS.

My commission expires June 30, 2005.

Mitzi Sykes
NOTARY PUBLIC

INSTRUMENT #030000427
RECORDED IN THE CLERK'S OFFICE OF
DICKENSON ON
MARCH 13, 2003 AT 01:06PM
JOE TATE, CLERK

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE CIRCUIT COURT OF DICKENSON COUNTY, 3/13, 2003. This deed was this day presented in said office, and upon the certificate of acknowledgment thereto annexed, admitted to record at 1:06 o'clock P M, after payment of $ 0 tax imposed by Sec. 58.1-802.

TESTE: JOE TATE, CLERK

Original returned this date to Lethia Phipps

BY _____ D. CLERK

THIS DEED OF GIFT, made and entered into this 23rd day of March, 1993, by LETHIA LOUISE SLUSS REYNOLDS, GRANTOR, and LETHIA PHIPPS and STEVEN R. PHIPPS, husband and wife, GRANTEES, as tenants by the entireties with rights of survivorship as at common law.

WITNESSETH:

The GRANTOR, gives and grants to the Grantees, LETHIA PHIPPS and STEVEN R. PHIPPS, husband and wife, as tenants by the entireties with rights of survivorship as at common law, with covenants of General Warranty and English Covenants of Title, the following real property, together with all appurtenances attached thereto, more particularly bounded and described as follows:

PROPERTY LOCATION:

Lying and being on Bartley Branch in Dickenson County, Virginia.

PROPERTY DESCRIPTION:

BEGINNING at a stake in the edge of the State Highway and in line of W.M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W.M. Phipps; thence N 53 45 W. 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is part; thence N 55 45 E 130 feet to the BEGINNING, containing about 13500 square feet, more or less.

PRIOR REFERENCE:

Being the same lane conveyed to Lethia Louis Sluss Reynolds, by deed dated June 29, 1989, and of record in the Dickenson County Circuit Court Clerk's Office in Deed Book 264 , Page 424 .

LAW OFFICE OF DONALD H. ASKINS, P.C.
A Professional Corporation
Main Street - P.O. Box 715
Clintwood, Virginia 24228
(703) 926-4612

EXCEPTIONS:

There is excepted from this conveyance such exceptions as have been made by prior recorded deeds.

This conveyance is exempt from recordation taxes as set forth in Section 58.1 - 810 of the Code of Virginia, as amended

WITNESS the following signature and seal:

Lethia Louise Sluss Reynolds (SEAL)
LETHIA LOUIS SLUSS REYNOLDS

STATE OF VIRGINIA
COUNTY OF DICKENSON:

On this date, the GRANTOR, LETHIA LOUIS SLUSS REYNOLDS, personally appeared before me and acknowledged her signature on the foregoing Deed of Gift dated the 23rd day of March, 1993.

Given under my hand this the 23rd day of March, 1993.

My commission expires on: Sept 30, 1994.

Vicky Mooney
NOTARY PUBLIC

VIRGINIA: IN THE OFFICE OF THE CLERK OF THE CIRCUIT COURT OF DICKENSON COUNTY. March 29, 1993. This deed was this day presented in said office, and upon the certificate of acknowledgment thereto annexed, admitted to record at 3:52 o'clock P.M. after payment of $_____ tax imposed by Sec. 58.1-802.

TESTE: JOE TATE, CLERK
BY: [illegible] D. CLERK

Original returned this date to: Debbie Wampler for Dickenson-Buchanan Bank

LAW OFFICE OF DONALD H. ASKINS, P.C.
A Professional Corporation
Main Street - P.O. Box 715
Clintwood, Virginia 24228
(703) 926-4612

THIS DEED OF GIFT, made and entered into this 29th day of June, 1989, by KENNETH DAVID REYNOLDS and LETHIA LOUISE SLUSS REYNOLDS, GRANTORS, and LETHIA LOUISE SLUSS REYNOLDS, GRANTEE.

WITNESSETH:

The GRANTORS, Kenneth David Reynolds and Lethis Louise Sluss Reynolds, give and grant with covenants of General Warranty and English Covenants of Title unto GRANTEE, Lethia Louise Sluss Reynolds, as her equitable separate estate, the following real property, together with all appurtenances attached thereto, more particularly bounded and described as follows:

PROPERTY LOCATION:

Lying and being on Bartley Branch in Dickenson County, Virginia.

PROPERTY DESCRIPTION:

BEGINNING at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is part; thence N 55 45 E 130 feet to the BEGINNING, containing about 13500 square feet, more or less.

PRIOR REFERENCE:

Being the same land conveyed to Kenneth David Reynolds and Lethia Louise Sluss Reynolds, from Margie Ellen Sluss, et als, by deed dated October 26, 1984, and of record in the Dickenson County Circuit Court Clerk's Office in Deed Book 224, Page 761.

This property hereinabove described is to be held and owned by Grantee in her own right as her equitable separate estate, as if she were an unmarried woman, for her sole and separate use and benefit, free from the control and marital rights of her present spouse, the right of curtesy of her present or any future spouse

COMPARED & mailed
To Lethia Louise Sluss Reynolds
4-13 1990
Lula Large
Dep clerk.
Rt. 3 Box 301
Clintwood, Va.

in and to the Property being hereby expressly excluded, with full and complete power in and to Grantee to sell, convey and encumber by deed of trust or otherwise, or otherwise dispose of the Property by deed or other instrument, and with the full and complete power in and to Grantee to devise or otherwise dispose of the Property by her last will and testament.

EXCEPTIONS:

There is excepted from this conveyance such exceptions as have been made by prior recorded deeds.

This conveyance is exempt from recordation taxes as set forth in Section 58.1 - 810 of the Code of Virginia, as amended

WITNESS the following signatures and seals:

Kenneth David Reynolds (SEAL)
KENNETH DAVID REYNOLDS

Lethia Louise Sluss Reynolds (SEAL)
LETHIA LOUISE SLUSS REYNOLDS

STATE OF VIRGINIA
COUNTY OF DICKENSON:

On this date, the GRANTOR, KENNETH DAVID REYNOLDS, personally appeared before me and acknowledged his signature on the foregoing Deed of Gift dated the 29th day of June, 1989.

Given under my hand this the 29th day of June, 1989.

My commission expires on: Jan. 4, 1991

Angela Neal
NOTARY PUBLIC

STATE OF VIRGINIA
COUNTY OF DICKENSON:

On this date, the GRANTOR, LETHIA LOUISE SLUSS REYNOLDS, personally appeared before me and acknowledged her signature on the foregoing Deed of Gift dated the 29th day of June, 1989.

Given under my hand this the 29th day of June, 1989.

My commission expires on: Jan 4, 1991

Angela Neal
NOTARY PUBLIC

VIRGINIA — In the Clerk's Office of the Circuit Court of Dickenson County
April 3, 19 90. This deed was this day
received in said office, and upon the certificate of acknowledgement
thereto annexed, admitted to record, at 11:17 o'clock A M
after payment of $ None, tax imposed by Sec. 58.54 (c),
in deed book 264 page 424

Teste: Teddy Bailey Clerk
By Lula Large, Dep Clerk
Tax $ None Transfer Fee $ 1.00

THIS DEED, made and entered into on this the 26th day of October, 1984, by and between MARGIE ELLEN SLUSS (Widow), GUY E. SLUSS (Single); and LETHIA LOUISE SLUSS REYNOLDS and KENNETH DAVID REYNOLDS, husband and wife, parties of the first part, and KENNETH DAVID REYNOLDS and LETHIA LOUISE SLUSS REYNOLDS, husband and wife, as tenants by the entireties with rights of survivorship as at common law, parties of the second part, whose address is Rt. 3 Box 392, Clintwood, Virginia 24228.

WITNESSETH:

WHEREAS, by deed dated November 28, 1947, of record in Deed Book 91, page 404, of the Clerk's Office of Dickenson County, Virginia, Calvin Moore and Enzie Moore conveyed the hereinafter described tract of land to Guy C. Sluss and Margie Ellen Sluss; and,

WHEREAS, Guy C. Sluss thereafter died intestate, leaving as his sole heirs at law, his wife, Margie Ellen Sluss, and two (2) children, namely: Guy E. Sluss and Lethia Louise Sluss Reynolds.

NOW, THEREFORE, that for and in consideration of the sum of ONE HUNDRED ($100.00) DOLLARS, cash in hand paid, and other good and valuable consideration, the receipt of which is hereby acknowledged, the parties of the first part do hereby grant, bargain, sell and convey unto Kenneth David Reynolds and Lethia Louise Sluss Reynolds, as tenants by the entireties, with rights of survivorship as at common law, with Covenants of General Warranty and English Covenants of Title, all that certain tract or parcel of land, with all the appurtenances thereto belonging, situate, lying and being on Bartley Branch in Dickenson County, Virginia, and being more particularly bounded and described as follows:

BEGINNING at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is a part; thence N 55 45 E 130 feet to the Beginning, containing about 13500 square feet, more or less, and being the same land acquired as aforesaid.

There is excepted from this conveyance such exceptions and reservations as have been heretofore made by prior deeds of record.

Real estate taxes for the year 1984 shall be pro-rated between the parties.

COMPARED & mailed to Kenneth D. Reynolds 11-15 1984 Luka Large clerk. Rt. 3 Box 392 Clintwood, Va.

WITNESS the following signatures and seals:

Margie Ellen Sluss (SEAL) MARGIE ELLEN SLUSS

Guy E. Sluss (SEAL) GUY E. SLUSS

Lethia Louise Sluss Reynolds (SEAL) LETHIA LOUISE SLUSS REYNOLDS

Kenneth David Reynolds (SEAL) KENNETH DAVID REYNOLDS

STATE OF VIRGINIA,

COUNTY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 30 day of October, 1984, by Margie Ellen Sluss (Widow).

My commission expires Sept 26, 1988.

Betty M. Anderson
NOTARY PUBLIC

STATE OF VIRGINIA,

COUNTY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 29th day of October, 1984, by Guy E. Sluss (Single).

My commission expires April 13, 1987.

Susan Mullins
NOTARY PUBLIC

STATE OF VIRGINIA,

COUNTY OF DICKENSON, To-wit:

The foregoing deed was acknowledged before me this 30 day of October, 1984, by Lethia Louise Sluss Reynolds and Kenneth David Reynolds, husband and wife.

My commission expires Sept 26, 1988.

Betty M. Anderson
NOTARY PUBLIC

VIRGINIA: In the Clerk's Office of the Circuit Court of Dickenson County, October 31, 1984. This deed was this day received in said office, and upon the certificate of acknowledgement ... thereto annexed, admitted to record, at 1:50 o'clock P M., after payment of $ 1.00 tax imposed by Sec. 58-54 (b), in deed book 224 page 761

Teste: Teddy Bailey, Clerk

By: Lula Large, Deputy Clerk

Tax $ 19.10 Transfer Fee $ 1.00

When recorded, return to:
Top Flite Financial, Inc. C/O DocProbe
Attn: Final Document Department
1133 Ocean Avenue
Mailstop Code:DP6219
Lakewood , NJ 08701
866-301-0653

This document was prepared by:
Esther Perez
Top Flite Financial, Inc.
201 School Street Suite 200
Williamston, MI 48895
517-208-1205

Title Order No.: NVA-1394405
Escrow No.: NVA-1394405
LOAN #: 2732312589

APN: 10080
AMOUNT OF CONSIDERATION: $55,962.00

[Space Above This Line For Recording Data]

DEED OF TRUST

FHA Case No.
5443869015-703-203B

MIN: 1008791-0000311531-2
MERS PHONE #: 1-888-679-6377

The following information, as further defined below, is provided in accordance with Virginia law:

This Deed of Trust is given by **CYNTHIA LEE ANN KISER, AN UNMARRIED WOMAN,**

as Borrower (trustor), to **Netco Title Company,**

as Trustee, for the benefit of Mortgage Electronic Registration Systems, Inc. as beneficiary.

DEFINITIONS
Words used in multiple sections of this document are defined below and other words are defined in Sections 3, 10, 12, 17, 19 and 21. Certain rules regarding the usage of words used in this document are also provided in Section 15.
(A) "Security Instrument" means this document, which is dated **November 30, 2023,** together with all Riders to this document.
(B) "Borrower" is **CYNTHIA LEE ANN KISER, AN UNMARRIED WOMAN.**

Borrower is the trustor under this Security Instrument.

LOAN #: 2732312589

(C) "Lender" is **Top Flite Financial, Inc..**

Lender is **a Michigan Corporation,** organized and existing under the laws of **Michigan.**
Lender's address is **201 School Street, Suite 200, Williamston, MI 48895.**

(D) "Trustee" is **Netco Title Company.**

Trustee (whether one or more persons) is a Virginia resident and/or a United States- or Virginia-chartered corporation whose principal office is located in Virginia. Trustee's address is **293 Independence Blvd #318 Virginia Beach VA 23462**

(E) "MERS" is Mortgage Electronic Registration Systems, Inc. MERS is a separate corporation that is acting solely as a nominee for Lender and Lender's successors and assigns. **MERS is the beneficiary under this Security Instrument.** MERS is organized and existing under the laws of Delaware, and has an address and telephone number of P.O. Box 2026, Flint, MI 48501-2026, tel. (888) 679-MERS.
(F) "Note" means the promissory note signed by Borrower and dated **November 30, 2023.** The Note states that Borrower owes Lender **FIFTY FIVE THOUSAND NINE HUNDRED SIXTY TWO AND NO/100***

(R) "Secretary" means the Secretary of the United States Department of Housing and Urban Development or his designee.

(S) "Successor in Interest of Borrower" means any party that has taken title to the Property, whether or not that party has assumed Borrower's obligations under the Note and/or this Security Instrument.

TRANSFER OF RIGHTS IN THE PROPERTY

The beneficiary of this Security Instrument is MERS (solely as nominee for Lender and Lender's successors and assigns) and the successors and assigns of MERS. This Security Instrument secures to Lender: (i) the repayment of the Loan, and all renewals, extensions and modifications of the Note; and (ii) the performance of Borrower's covenants and agreements under this Security Instrument and the Note. For this purpose, Borrower irrevocably grants and conveys to Trustee, in trust, with power of sale, the following described property located in the **County**
[Type of Recording Jurisdiction]

of **Dickenson**
[Name of Recording Jurisdiction]:

SEE LEGAL DESCRIPTION ATTACHED HERETO AND MADE A PART HEREOF AS "EXHIBIT A".
APN #: 10080

which currently has the address of **3155 THE LAKE RD, CLINTWOOD,**
[Street] [City/County]

Virginia **24228** ("Property Address"):
[Zip Code]

TOGETHER WITH all the improvements now or hereafter erected on the property, and all easements, appurtenances, and fixtures now or hereafter a part of the property. All replacements and additions shall also be covered by this Security Instrument. All of the foregoing is referred to in this Security Instrument as the "Property." Borrower understands and agrees that MERS holds only legal title to the interests granted by Borrower in this Security Instrument, but, if necessary to comply with law or custom, MERS (as nominee for Lender and Lender's successors and assigns) has the right: to exercise any or all of those interests, including, but not limited to, the right to foreclose and sell the Property; and to take any action required of Lender including, but not limited to, releasing and canceling this Security Instrument.

BORROWER COVENANTS that Borrower is lawfully seised of the estate hereby conveyed and has the right to grant and convey the Property and that the Property is unencumbered, except for encumbrances of record. Borrower warrants and will defend generally the title to the Property against all claims and demands, subject to any encumbrances of record.

THIS SECURITY INSTRUMENT combines uniform covenants for national use and non-uniform covenants with limited variations by jurisdiction to constitute a uniform security instrument covering real property.

UNIFORM COVENANTS. Borrower and Lender covenant and agree as follows:

1. Payment of Principal, Interest, Escrow Items, and Late Charges. Borrower shall pay when due the principal of, and interest on, the debt evidenced by the Note and late charges due under the Note. Borrower shall also pay funds for Escrow Items pursuant to Section 3. Payments due under the Note and this Security Instrument shall be made in U.S. currency. However, if any check or other instrument received by Lender as payment under the Note or this Security Instrument is returned to Lender unpaid, Lender may require that any or all subsequent payments due under the Note and this Security Instrument be made in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality, or entity; or (d) Electronic Funds Transfer.

Payments are deemed received by Lender when received at the location designated in the Note or at such other location as may be designated by Lender in accordance with the notice provisions in

Section 14. Lender may return any payment or partial payment if the payment or partial payments are insufficient to bring the Loan current. Lender may accept any payment or partial payment insufficient to bring the Loan current, without waiver of any rights hereunder or prejudice to its rights to refuse such payment or partial payments in the future, but Lender is not obligated to apply such payments at the time such payments are accepted. If each Periodic Payment is applied as of its scheduled due date, then Lender need not pay interest on unapplied funds. Lender may hold such unapplied funds until Borrower makes payment to bring the Loan current. If Borrower does not do so within a reasonable period of time, Lender shall either apply such funds or return them to Borrower. If not applied earlier, such funds will be applied to the outstanding principal balance under the Note immediately prior to foreclosure. No offset or claim which Borrower might have now or in the future against Lender shall relieve Borrower from making payments due under the Note and this Security Instrument or performing the covenants and agreements secured by this Security Instrument.

2. **Application of Payments or Proceeds.** Except as otherwise described in this Section 2, all payments accepted and applied by Lender shall be applied in the following order of priority:

First, to the Mortgage Insurance premiums to be paid by Lender to the Secretary or the monthly charge by the Secretary instead of the monthly mortgage insurance premiums;

Second, to any taxes, special assessments, leasehold payments or ground rents, and fire, flood and other hazard insurance premiums, as required;

Third, to interest due under the Note;

Fourth, to amortization of the principal of the Note; and,

Fifth, to late charges due under the Note.

Any application of payments, insurance proceeds, or Miscellaneous Proceeds to principal due under the Note shall not extend or postpone the due date, or change the amount of the Periodic Payments.

3. **Funds for Escrow Items.** Borrower shall pay to Lender on the day Periodic Payments are due under the Note, until the Note is paid in full, a sum (the "Funds") to provide for payment of amounts due for: (a) taxes and assessments and other items which can attain priority over this Security Instrument as a lien or encumbrance on the Property; (b) leasehold payments or ground rents on the Property, if any; (c) premiums for any and all insurance required by Lender under Section 5; and (d) Mortgage Insurance premiums to be paid by Lender to the Secretary or the monthly charge by the Secretary instead of the monthly Mortgage Insurance premiums. These items are called "Escrow Items." At origination or at any time during the term of the Loan, Lender may require that Community Association Dues, Fees, and Assessments, if any, be escrowed by Borrower, and such dues, fees and assessments shall be an Escrow Item. Borrower shall promptly furnish to Lender all notices of amounts to be paid under this Section. Borrower shall pay Lender the Funds for Escrow Items unless Lender waives Borrower's obligation to pay the Funds for any or all Escrow Items. Lender may waive Borrower's obligation to pay to Lender Funds for any or all Escrow Items at any time. Any such waiver may only be in writing. In the event of such waiver, Borrower shall pay directly, when and where payable, the amounts due for any Escrow Items for which payment of Funds has been waived by Lender and, if Lender requires, shall furnish to Lender receipts evidencing such payment within such time period as Lender may require. Borrower's obligation to make such payments and to provide receipts shall for all purposes be deemed to be a covenant and agreement contained in this Security Instrument, as the phrase "covenant and agreement" is used in Section 9. If Borrower is obligated to pay Escrow Items directly, pursuant to a waiver, and Borrower fails to pay the amount due for an Escrow Item, Lender may exercise its rights under Section 9 and pay such amount and Borrower shall then be obligated under Section 9 to repay to Lender any such amount. Lender may revoke the waiver as to any or all Escrow Items at any time by a notice given in accordance with Section 14 and, upon such revocation, Borrower shall pay to Lender all Funds, and in such amounts, that are then required under this Section 3.

Lender may, at any time, collect and hold Funds in an amount (a) sufficient to permit Lender to apply the Funds at the time specified under RESPA, and (b) not to exceed the maximum amount a lender can require under RESPA. Lender shall estimate the amount of Funds due on the basis of current data and reasonable estimates of expenditures of future Escrow Items or otherwise in accordance with Applicable Law.

The Funds shall be held in an institution whose deposits are insured by a federal agency, instrumentality, or entity (including Lender, if Lender is an institution whose deposits are so insured) or in any Federal Home Loan Bank. Lender shall apply the Funds to pay the Escrow Items no later than the time specified under RESPA. Lender shall not charge Borrower for holding and applying the Funds, annually analyzing the escrow account, or verifying the Escrow Items, unless Lender pays Borrower interest on the Funds and Applicable Law permits Lender to make such a charge. Unless an agreement is made in writing or Applicable Law requires interest to be paid on the Funds, Lender shall not be required to pay Borrower any interest or earnings on the Funds. Borrower and Lender can agree in writing, however, that interest shall be paid on the Funds. Lender shall give to Borrower, without charge, an annual accounting of the Funds as required by RESPA.

If there is a surplus of Funds held in escrow, as defined under RESPA, Lender shall account to Borrower for the excess funds in accordance with RESPA. If there is a shortage of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the shortage in accordance with RESPA, but in no more than 12 monthly payments. If there is a deficiency of Funds held in escrow, as defined under RESPA, Lender shall notify Borrower as required by RESPA, and Borrower shall pay to Lender the amount necessary to make up the deficiency in accordance with RESPA, but in no more than 12 monthly payments.

Upon payment in full of all sums secured by this Security Instrument, Lender shall promptly refund to Borrower any Funds held by Lender.

4. Charges; Liens. Borrower shall pay all taxes, assessments, charges, fines, and impositions attributable to the Property which can attain priority over this Security Instrument, leasehold payments or ground rents on the Property, if any, and Community Association Dues, Fees, and Assessments, if any. To the extent that these items are Escrow Items, Borrower shall pay them in the manner provided in Section 3.

Borrower shall promptly discharge any lien which has priority over this Security Instrument unless Borrower: (a) agrees in writing to the payment of the obligation secured by the lien in a manner acceptable to Lender, but only so long as Borrower is performing such agreement; (b) contests the lien in good faith by, or defends against enforcement of the lien in, legal proceedings which in Lender's opinion operate to prevent the enforcement of the lien while those proceedings are pending, but only until such proceedings are concluded; or (c) secures from the holder of the lien an agreement satisfactory to Lender subordinating the lien to this Security Instrument. If Lender determines that any part of the Property is subject to a lien which can attain priority over this Security Instrument, Lender may give Borrower a notice identifying the lien. Within 10 days of the date on which that notice is given, Borrower shall satisfy the lien or take one or more of the actions set forth above in this Section 4.

5. Property Insurance. Borrower shall keep the improvements now existing or hereafter erected on the Property insured against loss by fire, hazards included within the term "extended coverage," and any other hazards including, but not limited to, earthquakes and floods, for which Lender requires insurance. This insurance shall be maintained in the amounts (including deductible levels) and for the periods that Lender requires. What Lender requires pursuant to the preceding sentences can change during the term of the Loan. The insurance carrier providing the insurance shall be chosen by Borrower subject to Lender's right to disapprove Borrower's choice, which right shall not be exercised unreasonably. Lender may require Borrower to pay, in connection with this Loan, either: (a) a one-time charge for flood zone determination, certification and tracking services; or (b) a one-time charge for flood zone determination and certification services and subsequent charges each time remappings or similar changes occur which reasonably might affect such determination or certification. Borrower shall also be responsible for the payment of any fees imposed by the Federal Emergency Management Agency in connection with the review of any flood zone determination resulting from an objection by Borrower.

If Borrower fails to maintain any of the coverages described above, Lender may obtain insurance coverage, at Lender's option and Borrower's expense. Lender is under no obligation to purchase any particular type or amount of coverage. Therefore, such coverage shall cover Lender, but might or might not protect Borrower, Borrower's equity in the Property, or the contents of the Property, against any risk, hazard or liability and might provide greater or lesser coverage than was previously in effect. Borrower acknowledges that the cost of the insurance coverage so obtained might significantly exceed the cost of insurance that Borrower could have obtained. Any amounts disbursed by Lender under this Section 5 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

All insurance policies required by Lender and renewals of such policies shall be subject to Lender's right to disapprove such policies, shall include a standard mortgage clause, and shall name Lender as mortgagee and/or as additional loss payee. Lender shall have the right to hold the policies and renewal certificates. If Lender requires, Borrower shall promptly give to Lender all receipts of paid premiums and renewal notices. If Borrower obtains any form of insurance coverage, not otherwise required by Lender, for damage to, or destruction of, the Property, such policy shall include a standard mortgage clause and shall name Lender as mortgagee and/or as an additional loss payee.

In the event of loss, Borrower shall give prompt notice to the insurance carrier and Lender. Lender may make proof of loss if not made promptly by Borrower. Unless Lender and Borrower otherwise agree in writing, any insurance proceeds, whether or not the underlying insurance was required by Lender, shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such insurance proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such insurance proceeds, Lender shall not be required to pay Borrower any interest or earnings on such proceeds. Fees for public adjusters, or other third parties, retained by Borrower shall not be paid out of the insurance proceeds and shall be the sole obligation of Borrower. If the restoration or repair is not economically feasible or Lender's security would be lessened, the insurance proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such insurance proceeds shall be applied in the order provided for in Section 2.

If Borrower abandons the Property, Lender may file, negotiate and settle any available insurance claim and related matters. If Borrower does not respond within 30 days to a notice from Lender that the insurance carrier has offered to settle a claim, then Lender may negotiate and settle the claim. The 30-day period will begin when the notice is given. In either event, or if Lender acquires the Property under Section 24 or otherwise, Borrower hereby assigns to Lender (a) Borrower's rights to any insurance proceeds in an amount not to exceed the amounts unpaid under the Note or this Security Instrument, and (b) any other of Borrower's rights (other than the right to any refund of unearned premiums paid by Borrower) under all insurance policies covering the Property, insofar as such rights are applicable to the

coverage of the Property. Lender may use the insurance proceeds either to repair or restore the Property or to pay amounts unpaid under the Note or this Security Instrument, whether or not then due.

6. Occupancy. Borrower shall occupy, establish, and use the Property as Borrower's principal residence within 60 days after the execution of this Security Instrument and shall continue to occupy the Property as Borrower's principal residence for at least one year after the date of occupancy, unless Lender determines that this requirement shall cause undue hardship for the Borrower, or unless extenuating circumstances exist which are beyond Borrower's control.

7. Preservation, Maintenance and Protection of the Property; Inspections. Borrower shall not destroy, damage or impair the Property, allow the Property to deteriorate or commit waste on the Property. Borrower shall maintain the Property in order to prevent the Property from deteriorating or decreasing in value due to its condition. Unless it is determined pursuant to Section 5 that repair or restoration is not economically feasible, Borrower shall promptly repair the Property if damaged to avoid further deterioration or damage. If insurance or condemnation proceeds are paid in connection with damage to the Property, Borrower shall be responsible for repairing or restoring the Property only if Lender has released proceeds for such purposes. Lender may disburse proceeds for the repairs and restoration in a single payment or in a series of progress payments as the work is completed. If the insurance or condemnation proceeds are not sufficient to repair or restore the Property, Borrower is not relieved of Borrower's obligation for the completion of such repair or restoration.

If condemnation proceeds are paid in connection with the taking of the property, Lender shall apply such proceeds to the reduction of the indebtedness under the Note and this Security Instrument, first to any delinquent amounts, and then to payment of principal. Any application of the proceeds to the principal shall not extend or postpone the due date of the monthly payments or change the amount of such payments.

Lender or its agent may make reasonable entries upon and inspections of the Property. If it has reasonable cause, Lender may inspect the interior of the improvements on the Property. Lender shall give Borrower notice at the time of or prior to such an interior inspection specifying such reasonable cause.

8. Borrower's Loan Application. Borrower shall be in default if, during the Loan application process, Borrower or any persons or entities acting at the direction of Borrower or with Borrower's knowledge or consent gave materially false, misleading, or inaccurate information or statements to Lender (or failed to provide Lender with material information) in connection with the Loan. Material representations include, but are not limited to, representations concerning Borrower's occupancy of the Property as Borrower's principal residence.

9. Protection of Lender's Interest in the Property and Rights Under this Security Instrument. If (a) Borrower fails to perform the covenants and agreements contained in this Security Instrument, (b) there is a legal proceeding that might significantly affect Lender's interest in the Property and/or rights under this Security Instrument (such as a proceeding in bankruptcy, probate, for condemnation or forfeiture, for enforcement of a lien which may attain priority over this Security Instrument or to enforce laws or regulations), or (c) Borrower has abandoned the Property, then Lender may do and pay for whatever is reasonable or appropriate to protect Lender's interest in the Property and rights under this Security Instrument, including protecting and/or assessing the value of the Property, and securing and/or repairing the Property. Lender's actions can include, but are not limited to: (a) paying any sums secured by a lien which has priority over this Security Instrument; (b) appearing in court; and (c) paying reasonable attorneys' fees to protect its interest in the Property and/or rights under this Security Instrument, including its secured position in a bankruptcy proceeding. Securing the Property includes, but is not limited to, entering the Property to make repairs, change locks, replace or board up doors and windows, drain water from pipes, eliminate building or other code violations or dangerous conditions, and have utilities turned on or off. Although Lender may take action under this Section 9, Lender does not have to do so and is not under any duty or obligation to do so. It is agreed that Lender incurs no liability for not taking any or all actions authorized under this Section 9.

Any amounts disbursed by Lender under this Section 9 shall become additional debt of Borrower secured by this Security Instrument. These amounts shall bear interest at the Note rate from the date of disbursement and shall be payable, with such interest, upon notice from Lender to Borrower requesting payment.

If this Security Instrument is on a leasehold, Borrower shall comply with all the provisions of the lease. Borrower shall not surrender the leasehold estate and interests herein conveyed or terminate or cancel the ground lease. Borrower shall not, without the express written consent of Lender, alter or amend the ground lease. If Borrower acquires fee title to the Property, the leasehold and the fee title shall not merge unless Lender agrees to the merger in writing.

10. Assignment of Miscellaneous Proceeds; Forfeiture. All Miscellaneous Proceeds are hereby assigned to and shall be paid to Lender.

If the Property is damaged, such Miscellaneous Proceeds shall be applied to restoration or repair of the Property, if the restoration or repair is economically feasible and Lender's security is not lessened. During such repair and restoration period, Lender shall have the right to hold such Miscellaneous Proceeds until Lender has had an opportunity to inspect such Property to ensure the work has been completed to Lender's satisfaction, provided that such inspection shall be undertaken promptly. Lender may pay for the repairs and restoration in a single disbursement or in a series of progress payments as the work is completed. Unless an agreement is made in writing or Applicable Law requires interest to be paid on such Miscellaneous Proceeds, Lender shall not be required to pay Borrower any interest or earnings on such Miscellaneous Proceeds. If the restoration or repair is not economically feasible or Lender's security would be lessened, the Miscellaneous Proceeds shall be applied to the sums secured

by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower. Such Miscellaneous Proceeds shall be applied in the order provided for in Section 2.

In the event of a total taking, destruction, or loss in value of the Property, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument, whether or not then due, with the excess, if any, paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is equal to or greater than the amount of the sums secured by this Security Instrument immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the sums secured by this Security Instrument shall be reduced by the amount of the Miscellaneous Proceeds multiplied by the following fraction: (a) the total amount of the sums secured immediately before the partial taking, destruction, or loss in value divided by (b) the fair market value of the Property immediately before the partial taking, destruction, or loss in value. Any balance shall be paid to Borrower.

In the event of a partial taking, destruction, or loss in value of the Property in which the fair market value of the Property immediately before the partial taking, destruction, or loss in value is less than the amount of the sums secured immediately before the partial taking, destruction, or loss in value, unless Borrower and Lender otherwise agree in writing, the Miscellaneous Proceeds shall be applied to the sums secured by this Security Instrument whether or not the sums are then due.

If the Property is abandoned by Borrower, or if, after notice by Lender to Borrower that the Opposing Party (as defined in the next sentence) offers to make an award to settle a claim for damages, Borrower fails to respond to Lender within 30 days after the date the notice is given, Lender is authorized to collect and apply the Miscellaneous Proceeds either to restoration or repair of the Property or to the sums secured by this Security Instrument, whether or not then due. "Opposing Party" means the third party that owes Borrower Miscellaneous Proceeds or the party against whom Borrower has a right of action in regard to Miscellaneous Proceeds.

Borrower shall be in default if any action or proceeding, whether civil or criminal, is begun that, in Lender's judgment, could result in forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. Borrower can cure such a default and, if acceleration has occurred, reinstate as provided in Section 18, by causing the action or proceeding to be dismissed with a ruling that, in Lender's judgment, precludes forfeiture of the Property or other material impairment of Lender's interest in the Property or rights under this Security Instrument. The proceeds of any award or claim for damages that are attributable to the impairment of Lender's interest in the Property are hereby assigned and shall be paid to Lender.

All Miscellaneous Proceeds that are not applied to restoration or repair of the Property shall be applied in the order provided for in Section 2.

11. Borrower Not Released; Forbearance By Lender Not a Waiver. Extension of the time for payment or modification of amortization of the sums secured by this Security Instrument granted by Lender to Borrower or any Successor in Interest of Borrower shall not operate to release the liability of Borrower or any Successors in Interest of Borrower. Lender shall not be required to commence proceedings against any Successor in Interest of Borrower or to refuse to extend time for payment or otherwise modify amortization of the sums secured by this Security Instrument by reason of any demand made by the original Borrower or any Successors in Interest of Borrower. Any forbearance by Lender in exercising any right or remedy including, without limitation, Lender's acceptance of payments from third persons, entities or Successors in Interest of Borrower or in amounts less than the amount then due, shall not be a waiver of or preclude the exercise of any right or remedy.

12. Joint and Several Liability; Co-signers; Successors and Assigns Bound. Borrower covenants and agrees that Borrower's obligations and liability shall be joint and several. However, any Borrower who co-signs this Security Instrument but does not execute the Note (a "co-signer"): (a) is co-signing this Security Instrument only to mortgage, grant and convey the co-signer's interest in the Property under the terms of this Security Instrument; (b) is not personally obligated to pay the sums secured by this Security Instrument; and (c) agrees that Lender and any other Borrower can agree to extend, modify, forbear or make any accommodations with regard to the terms of this Security Instrument or the Note without the co-signer's consent.

Subject to the provisions of Section 17, any Successor in Interest of Borrower who assumes Borrower's obligations under this Security Instrument in writing, and is approved by Lender, shall obtain all of Borrower's rights and benefits under this Security Instrument. Borrower shall not be released from Borrower's obligations and liability under this Security Instrument unless Lender agrees to such release in writing. The covenants and agreements of this Security Instrument shall bind (except as provided in Section 19) and benefit the successors and assigns of Lender.

13. Loan Charges. Lender may charge Borrower fees for services performed in connection with Borrower's default, for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument, including, but not limited to, attorneys' fees, property inspection and valuation fees. Lender may collect fees and charges authorized by the Secretary. Lender may not charge fees that are expressly prohibited by this Security Instrument or by Applicable Law.

If the Loan is subject to a law which sets maximum loan charges, and that law is finally interpreted so that the interest or other loan charges collected or to be collected in connection with the Loan exceed the permitted limits, then: (a) any such loan charge shall be reduced by the amount necessary to reduce the charge to the permitted limit; and (b) any sums already collected from Borrower which exceeded permitted limits will be refunded to Borrower. Lender may choose to make this refund by reducing the

principal owed under the Note or by making a direct payment to Borrower. If a refund reduces principal, the reduction will be treated as a partial prepayment with no changes in the due date or in the monthly payment amount unless the Note holder agrees in writing to those changes. Borrower's acceptance of any such refund made by direct payment to Borrower will constitute a waiver of any right of action Borrower might have arising out of such overcharge.

14. Notices. All notices given by Borrower or Lender in connection with this Security Instrument must be in writing. Any notice to Borrower in connection with this Security Instrument shall be deemed to have been given to Borrower when mailed by first class mail or when actually delivered to Borrower's notice address if sent by other means. Notice to any one Borrower shall constitute notice to all Borrowers unless Applicable Law expressly requires otherwise. The notice address shall be the Property Address unless Borrower has designated a substitute notice address by notice to Lender. Borrower shall promptly notify Lender of Borrower's change of address. If Lender specifies a procedure for reporting Borrower's change of address, then Borrower shall only report a change of address through that specified procedure. There may be only one designated notice address under this Security Instrument at any one time. Any notice to Lender shall be given by delivering it or by mailing it by first class mail to Lender's address stated herein unless Lender has designated another address by notice to Borrower. Any notice in connection with this Security Instrument shall not be deemed to have been given to Lender until actually received by Lender. If any notice required by this Security Instrument is also required under Applicable Law, the Applicable Law requirement will satisfy the corresponding requirement under this Security Instrument.

15. Governing Law; Severability; Rules of Construction. This Security Instrument shall be governed by federal law and the law of the jurisdiction in which the Property is located. All rights and obligations contained in this Security Instrument are subject to any requirements and limitations of Applicable Law. Applicable Law might explicitly or implicitly allow the parties to agree by contract or it might be silent, but such silence shall not be construed as a prohibition against agreement by contract. In the event that any provision or clause of this Security Instrument or the Note conflicts with Applicable Law, such conflict shall not affect other provisions of this Security Instrument or the Note which can be given effect without the conflicting provision.

As used in this Security Instrument: (a) words of the masculine gender shall mean and include corresponding neuter words or words of the feminine gender; (b) words in the singular shall mean and include the plural and vice versa; and (c) the word "may" gives sole discretion without any obligation to take any action.

16. Borrower's Copy. Borrower shall be given one copy of the Note and of this Security Instrument.

17. Transfer of the Property or a Beneficial Interest in Borrower. As used in this Section 17, "Interest in the Property" means any legal or beneficial interest in the Property, including, but not limited to, those beneficial interests transferred in a bond for deed, contract for deed, installment sales contract or escrow agreement, the intent of which is the transfer of title by Borrower at a future date to a purchaser.

If all or any part of the Property or any Interest in the Property is sold or transferred (or if Borrower is not a natural person and a beneficial interest in Borrower is sold or transferred) without Lender's prior written consent, Lender may require immediate payment in full of all sums secured by this Security Instrument. However, this option shall not be exercised by Lender if such exercise is prohibited by Applicable Law.

If Lender exercises this option, Lender shall give Borrower notice of acceleration. The notice shall provide a period of not less than 30 days from the date the notice is given in accordance with Section 14 within which Borrower must pay all sums secured by this Security Instrument. If Borrower fails to pay these sums prior to the expiration of this period, Lender may invoke any remedies permitted by this Security Instrument without further notice or demand on Borrower.

18. Borrower's Right to Reinstate After Acceleration. If Borrower meets certain conditions, Borrower shall have the right to reinstatement of a mortgage. Those conditions are that Borrower: (a) pays Lender all sums which then would be due under this Security Instrument and the Note as if no acceleration had occurred; (b) cures any default of any other covenants or agreements; (c) pays all expenses incurred in enforcing this Security Instrument, including, but not limited to, reasonable attorneys' fees, property inspection and valuation fees, and other fees incurred for the purpose of protecting Lender's interest in the Property and rights under this Security Instrument; and (d) takes such action as Lender may reasonably require to assure that Lender's interest in the Property and rights under this Security Instrument, and Borrower's obligation to pay the sums secured by this Security Instrument, shall continue unchanged. However, Lender is not required to reinstate if: (i) Lender has accepted reinstatement after the commencement of foreclosure proceedings within two years immediately preceding the commencement of a current foreclosure proceedings; (ii) reinstatement will preclude foreclosure on different grounds in the future, or (iii) reinstatement will adversely affect the priority of the lien created by this Security Instrument. Lender may require that Borrower pay such reinstatement sums and expenses in one or more of the following forms, as selected by Lender: (a) cash; (b) money order; (c) certified check, bank check, treasurer's check or cashier's check, provided any such check is drawn upon an institution whose deposits are insured by a federal agency, instrumentality or entity; or (d) Electronic Funds Transfer. Upon reinstatement by Borrower, this Security Instrument and obligations secured hereby shall remain fully effective as if no acceleration had occurred. However, this right to reinstate shall not apply in the case of acceleration under Section 17.

19. Sale of Note; Change of Loan Servicer; Notice of Grievance. The Note or a partial interest in the Note (together with this Security Instrument) can be sold one or more times without prior notice to Borrower. A sale might result in a change in the entity (known as the "Loan Servicer") that collects Periodic Payments due under the Note and this Security Instrument and performs other mortgage loan servicing obligations under the Note, this Security Instrument, and Applicable Law. There also might be

one or more changes of the Loan Servicer unrelated to a sale of the Note. If there is a change of the Loan Servicer, Borrower will be given written notice of the change which will state the name and address of the new Loan Servicer, the address to which payments should be made and any other information RESPA requires in connection with a notice of transfer of servicing. If the Note is sold and thereafter the Loan is serviced by a Loan Servicer other than the purchaser of the Note, the mortgage loan servicing obligations to Borrower will remain with the Loan Servicer or be transferred to a successor Loan Servicer and are not assumed by the Note purchaser unless otherwise provided by the Note purchaser.

20. Borrower Not Third-Party Beneficiary to Contract of Insurance. Mortgage Insurance reimburses Lender (or any entity that purchases the Note) for certain losses it may incur if Borrower does not repay the Loan as agreed. Borrower acknowledges and agrees that the Borrower is not a third party beneficiary to the contract of insurance between the Secretary and Lender, nor is Borrower entitled to enforce any agreement between Lender and the Secretary, unless explicitly authorized to do so by Applicable Law.

21. Hazardous Substances. As used in this Section 21: (a) "Hazardous Substances" are those substances defined as toxic or hazardous substances, pollutants, or wastes by Environmental Law and the following substances: gasoline, kerosene, other flammable or toxic petroleum products, toxic pesticides and herbicides, volatile solvents, materials containing asbestos or formaldehyde, and radioactive materials; (b) "Environmental Law" means federal laws and laws of the jurisdiction where the Property is located that relate to health, safety or environmental protection; (c) "Environmental Cleanup" includes any response action, remedial action, or removal action, as defined in Environmental Law; and (d) an "Environmental Condition" means a condition that can cause, contribute to, or otherwise trigger an Environmental Cleanup.

Borrower shall not cause or permit the presence, use, disposal, storage, or release of any Hazardous Substances, or threaten to release any Hazardous Substances, on or in the Property. Borrower shall not do, nor allow anyone else to do, anything affecting the Property (a) that is in violation of any Environmental Law, (b) which creates an Environmental Condition, or (c) which, due to the presence, use, or release of a Hazardous Substance, creates a condition that adversely affects the value of the Property. The preceding two sentences shall not apply to the presence, use, or storage on the Property of small quantities of Hazardous Substances that are generally recognized to be appropriate to normal residential uses and to maintenance of the Property (including, but not limited to, hazardous substances in consumer products).

Borrower shall promptly give Lender written notice of (a) any investigation, claim, demand, lawsuit or other action by any governmental or regulatory agency or private party involving the Property and any Hazardous Substance or Environmental Law of which Borrower has actual knowledge, (b) any Environmental Condition, including but not limited to, any spilling, leaking, discharge, release or threat of release of any Hazardous Substance, and (c) any condition caused by the presence, use or release of a Hazardous Substance which adversely affects the value of the Property. If Borrower learns, or is notified by any governmental or regulatory authority, or any private party, that any removal or other remediation of any Hazardous Substance affecting the Property is necessary, Borrower shall promptly take all necessary remedial actions in accordance with Environmental Law. Nothing herein shall create any obligation on Lender for an Environmental Cleanup.

22. Grounds for Acceleration of Debt.

(a) Default. Lender may, except as limited by regulations issued by the Secretary, in the case of payment defaults, require immediate payment in full of all sums secured by this Security Instrument if:

(i) Borrower defaults by failing to pay in full any monthly payment required by this Security Instrument prior to or on the due date of the next monthly payment, or

(ii) Borrower defaults by failing, for a period of thirty days, to perform any other obligations contained in this Security Instrument.

(b) Sale Without Credit Approval. Lender shall, if permitted by applicable law (including Section 341(d) of the Garn-St. Germain Depository Institutions Act of 1982, 12 U.S.C. 1701j-3(d)) and with the prior approval of the Secretary, require immediate payment in full of all sums secured by this Security Instrument if:

(i) All or part of the Property, or a beneficial interest in a trust owning all or part of the Property, is sold or otherwise transferred (other than by devise or descent), and

(ii) The Property is not occupied by the purchaser or grantee as his or her principal residence, or the purchaser or grantee does so occupy the Property but his or her credit has not been approved in accordance with the requirements of the Secretary.

(c) No Waiver. If circumstances occur that would permit Lender to require immediate payment in full, but Lender does not require such payments, Lender does not waive its rights with respect to subsequent events.

(d) Regulations of HUD Secretary. In many circumstances regulations issued by the Secretary will limit Lender's rights, in the case of payment defaults, to require immediate payment in full and foreclose if not paid. This Security Instrument does not authorize acceleration or foreclosure if not permitted by regulations of the Secretary.

(e) Mortgage Not Insured. Borrower agrees that if this Security Instrument and the Note are not determined to be eligible for insurance under the National Housing Act within 60 days from the date hereof, Lender may, at its option, require immediate payment in full of all sums secured by this Security Instrument. A written statement of any authorized agent of the Secretary dated subsequent to 60 days from the date hereof, declining to insure this Security Instrument and the Note, shall be deemed conclusive proof of such ineligibility. Notwithstanding the foregoing, this option may not be exercised by Lender when the unavailability of insurance is solely due to Lender's failure to remit a mortgage insurance premium to the Secretary.

NON-UNIFORM COVENANTS. Borrower and Lender further covenant and agree as follows:

23. Assignment of Rents. Borrower unconditionally assigns and transfers to Lender all the rents and revenues of the Property. Borrower authorizes Lender or Lender's agents to collect the rents and revenues and hereby directs each tenant of the Property to pay the rents to Lender or Lender's agents. However, prior to Lender's notice to Borrower of Borrower's breach of any covenant or agreement in the Security Instrument, Borrower shall collect and receive all rents and revenues of the Property as trustee for the benefit of Lender and Borrower. This assignment of rents constitutes an absolute assignment and not an assignment for additional security only.

If Lender gives notice of breach to Borrower: (a) all rents received by Borrower shall be held by Borrower as trustee for benefit of Lender only, to be applied to the sums secured by the Security Instrument; (b) Lender shall be entitled to collect and receive all of the rents of the Property; and (c) each tenant of the Property shall pay all rents due and unpaid to Lender or Lender's agent on Lender's written demand to the tenant.

Borrower has not executed any prior assignment of the rents and has not and will not perform any act that would prevent Lender from exercising its rights under this Section 23.

Lender shall not be required to enter upon, take control of or maintain the Property before or after giving notice of breach to Borrower. However, Lender or a judicially appointed receiver may do so at any time there is a breach. Any application of rents shall not cure or waive any default or invalidate any other right or remedy of Lender. This assignment of rents of the Property shall terminate when the debt secured by the Security Instrument is paid in full.

24. Acceleration; Remedies. Lender shall give notice to Borrower prior to acceleration following Borrower's breach of any covenant or agreement in this Security Instrument (but not prior to acceleration under Section 17 unless Applicable Law provides otherwise). The notice shall specify: (a) the default; (b) the action required to cure the default; (c) a date, not less than 30 days from the date the notice is given to Borrower, by which the default must be cured; and (d) that failure to cure the default on or before the date specified in the notice may result in acceleration of the sums secured by this Security Instrument and sale of the Property. The notice shall further inform Borrower of the right to reinstate after acceleration and the right to bring a court action to assert the non-existence of a default or any other defense of Borrower to acceleration and sale. If the default is not cured on or before the date specified in the notice, Lender at its option may require immediate payment in full of all sums secured by this Security Instrument without further demand and may invoke the power of sale and any other remedies permitted by Applicable Law. Lender shall be entitled to collect all expenses incurred in pursuing the remedies provided in this Section 24, including, but not limited to, reasonable attorneys' fees and costs of title evidence.

If Lender invokes the power of sale, Lender or Trustee shall give to Borrower, the owner of the Property, and all other persons, notice of sale as required by Applicable Law. Trustee shall give public notice of sale by advertising, in accordance with Applicable Law, once a week for two successive weeks in a newspaper having general circulation in the county or city in which any part of the Property is located, and by such additional or any different form of advertisement the Trustee deems advisable. Trustee may sell the Property on the eighth day after the first advertisement or any day thereafter, but not later than 30 days following the last advertisement. Trustee, without demand on Borrower, shall sell the Property at public auction to the highest bidder at the time and place and under the terms designated in the notice of sale in one or more parcels and in any order Trustee determines. Trustee may postpone sale of all or any parcel of the Property by advertising in accordance with Applicable Law. Lender or its designee may purchase the Property at any sale.

Trustee shall deliver to the purchaser Trustee's deed conveying the Property with special warranty of title. The recitals in the Trustee's deed shall be prima facie evidence of the truth of the statements made therein. Trustee shall apply the proceeds of the sale in the following order: (a) to discharge the expenses of executing the trust, including a reasonable commission to Trustee; (b) to discharge all taxes, levies, and assessment, with costs and interest if these costs have priority over the lien of this Security Instrument, including the due pro rata thereof for the current year; (c) to discharge in the order of their priority, if any, the remaining debts and obligations secured by this Security Instrument, and any liens of record inferior to this Security Instrument under which sale is made, with lawful interest; and, (d) the residue of the proceeds shall be paid to Borrower or Borrower's assigns. Trustee shall not be required to take possession of the Property prior to the sale thereof or to deliver possession of the Property to the purchaser at the sale.

If the Lender's interest in this Security Instrument is held by the Secretary and the Secretary requires immediate payment in full under Section 22, the Secretary may invoke the nonjudicial power of sale provided in the Single Family Mortgage Foreclosure Act of 1994 ("Act") (12 U.S.C. 3751 et seq.) by requesting a foreclosure commissioner designated under the Act to commence foreclosure and to sell the Property as provided in the Act. Nothing in the preceding sentence shall deprive the Secretary of any rights otherwise available to a Lender under this Section 24 or applicable law.

25. Release. Upon payment of all sums secured by this Security Instrument, Lender shall request Trustee to release this Security Instrument and shall surrender all notes evidencing debt secured by this Security Instrument to Trustee. Trustee shall release this Security Instrument. Borrower shall pay any recordation costs. Lender may charge Borrower a fee for releasing this Security Instrument, but only

LOAN #: 2732312589

if the fee is paid to a third party for services rendered and the charging of the fee is permitted under Applicable Law.

26. Substitute Trustee. Lender, at its option, may from time to time remove Trustee and appoint a successor trustee to any Trustee appointed hereunder. Without conveyance of the Property, the successor trustee shall succeed to all the title, power and duties conferred upon Trustee herein and by Applicable Law.

NOTICE: THE DEBT SECURED HEREBY IS SUBJECT TO CALL IN FULL OR THE TERMS THEREOF BEING MODIFIED IN THE EVENT OF SALE OR CONVEYANCE OF THE PROPERTY CONVEYED.

BY SIGNING BELOW, Borrower accepts and agrees to the terms and covenants contained in this Security Instrument and in any Rider executed by Borrower and recorded with it.

Cynthia L Kiser-Hylton 11/30/23 (Seal)
CYNTHIA L KISER-HYLTON DATE

Commonwealth of Virginia
City/County of Dickenson

The foregoing instrument was acknowledged before me this 11 - 30 - 2023 (date) by CYNTHIA L KISER-HYLTON.

Notary Seal

Jessica A Greene
Notary Public's signature

Notary registration number: 7716 251

My commission expires: 06 30 2025

Lender: Top Flite Financial, Inc.
NMLS ID: 4181
Loan Originator: Lindsay Janku
NMLS ID: 1644714

JESSICA ANN GREENE
NOTARY PUBLIC
REG. #7716251
MY COMMISSION EXPIRES
June 30 2025
COMMONWEALTH OF VIRGINIA

NETCO File Number:NVA-1394405

Borrower Last Name: Kiser-Hylton

Exhibit A
Legal Description

All that certain tract or parcel of land, with the improvements thereon and all rights, privileges and appurtenances thereunto belonging situate, lying and being on Bartley Branch in Dickenson County, Virginia, and being more particularly bounded and described as follows:

BEGINNING at a stake in the edge of the State Highway and in line of W. M. Phipps land; thence N 53 E 100 feet to a stake in the line of land of W. M. Phipps; thence N 53 45 W 142 feet to a stake in the line of W. M. Phipps and Clyde Mullins; thence S 43 W 54 feet to a stake; S 49 W 50 feet to a stake in the line of W. M. Phipps 2 acre tract of which this is a part; thence N 55 45 E 130 feet to the BEGINNING, containing about 13500 square feet, more or less.

Being the same property or a portion of the same property conveyed to Cynthia Lee Ann Kiser, seperated by Instrument dated December 1, 2017 from Vernon Randall Powers and Lethia Louise Powers filed on December 1, 2017 as Document Number 170001346 and in Book 552 at Page 114 in the Dickenson County records.

Commonly known as: 3155 The Lake Road, Clintwood, VA 24228

Parcel Number: 10080

INSTRUMENT 230001221
RECORDED IN THE CLERK'S OFFICE OF
DICKENSON CIRCUIT COURT ON
DECEMBER 6, 2023 AT 08:17 AM
RICHARD W. EDWARDS, CLERK
RECORDED BY: CXC